

109

2026.PHHC.086659



**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

**CRM-M-32809-2026
Decided On: 04.06.2026**

MANPREET SINGH

....PETITIONER(S)

VERSUS

STATE OF PUNJAB

....RESPONDENT(S)

CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL**Present:** Mr. Gagandeep Singh Virk, Advocate for the petitioner**SANDEEP MOUDGIL, J. (ORAL)****1. Prayer**

The jurisdiction of this Court has been invoked under Section 482 of the BNSS, 2023 for grant of anticipatory bail to the petitioner in FIR No.31 dated 01.04.2026 under Section 108 of BNS Act (Section 306 of IPC) registered at Police Station Julkan, District Patiala (P-1).

2. Contention**On behalf of the petitioner**

Learned counsel for the petitioner submits that the petitioner has been falsely implicated in the present case, as there is no evidence of any instigation on his part, nor is there any allegation of direct act or words having been used to provoke or abet the deceased to commit suicide. It is further submitted that no conspiracy is made out, as no act or illegal omission in furtherance thereof has been shown to have occurred leading to the suicide. The petitioner further submits that he is ready and willing to join the investigation.

Notice of motion.

On behalf of the State

On the asking of the Court, Mr. Rajiv Verma, Addl. AG Punjab accepts notice on behalf of the respondent–State and vehemently opposes the prayer made by learned counsel for the petitioner. He submits that the petitioner has committed a very serious offence under Section 108 BNS, as he played an active role in the death of deceased Sandeep Singh. It is further submitted that there are direct and specific allegations against the petitioner that false allegations of theft of 150 litres of diesel were levelled against the deceased, and due to the resultant harassment, Sandeep Singh committed suicide.

3. Analysis

In the present case, admittedly, no allegations are made out as there is no instance of immediate instigation in close proximity to the time of the alleged act committed by the deceased. Otherwise also, the facts as culled out from the FIR reveal that the only allegation against the petitioner is of an outburst accusing the deceased of stealing and selling diesel from the truck, and it is alleged that on this account the deceased took the extreme step of committing suicide. However, the said allegation, by itself, does not indicate such intensity as would have compelled or pushed the deceased to take his own life. The petitioner has further undertaken in para 16 of the present petition that he is ready and willing to join the investigation and shall fully cooperate in its furtherance. Therefore, this Court finds no reason to decline the present petition.

4. Relief:-

Hence, the petitioner is directed to be released on anticipatory bail subject to his joining investigation with the Investigating Officer concerned

within a period of one week from today, on furnishing of personal/surety bonds to his satisfaction. The petitioner shall also abide by the terms and conditions as envisaged under Section 482(2) of BNSS, which are reproduced below:-

‘When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such directions in the light of the facts of the particular case, as it may think fit, including-

(i) a condition that the person shall make himself available for interrogation by a police officer as and when required;

(ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;

(iii) a condition that the person shall not leave India without the previous permission of the Court;

(iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.’

However, it is made clear that in case the petitioner does not comply with the aforesaid direction of joining the investigation within a period of one week, the order passed by this Court today shall automatically stands cancelled.

In the aforesaid terms, the present petition stands allowed.
Pending application(s), if any shall disposed off, accordingly.

(SANDEEP MOUDGIL)
JUDGE

04.06.2026

NainaRajput

Whether speaking/reasoned : Yes/No
Whether reportable : Yes/No